

August 4, 2021

**Small Claim Form for Informal Adjudication
and Information Checklist**

Federal Maritime Commission, Washington, DC.

Informal Docket No. 1971(I)

Mohawk Global Logistics Corp. DBA Mohawk Global Logistics (Claimant)

vs.

**MSC Mediterranean Shipping Company (USA) INC. as agent for
Mediterranean Shipping Company, S.A., Geneva (Respondent)**

I. **Claimant** is a New York corporation, licensed as a US Customs Broker with National Permit No. 99-00089, and with principal place of business at 123 Air Cargo Road, North Syracuse, NY 13212.

II. Upon information and belief, **Respondent** is incorporated in New York State as agent for a Vessel Operating Common Carrier that is headquartered in Geneva, Switzerland. Agent lists their principal place of business as 420 5th Ave, New York, NY 10018.

III. That:

- A. **Claimant** was appointed as US Customs Broker for 4 import containers.
- B. **Claimant** was subsequently listed by Shipper as Notify Party on Master Bill(s) of Lading.
- C. **Claimant** had nothing to do with the set-up, booking, payment of freight, or transportation of the 4 containers in question.
- D. **Respondent** made arrangements with the Shipper to transport cargo from port of Paita, Peru to delivery at final door in Fall River, MA under carrier haulage. Freight was prepaid by Shipper in Peru on Port to Door basis.
- E. **Respondent** was responsible to deliver the containers to final door in Fall River, MA per contractual terms of their Master Bill of Lading under carrier haulage.
- F. **Respondent** claimed delivery would be delayed because of a shortage of trucks, and that free time would not be extended.
- G. **Respondent** could not make delivery for two weeks, during periods of terminal closure for storms, weekends, and holidays.

- H. **Respondent** required payment of pre-delivery equipment detention of \$ 5,280 and terminal demurrage of \$ 16,188.00 for (total of \$21,468) prepaid by **Claimant** before the containers would be delivered.
- I. Consignee refused to pay the charges advanced by **Claimant** for reason that the cargo was purchased from Shipper on prepaid Port to Door basis, including door delivery under carrier haulage.
- J. **Respondent**, as common carrier engaged in transportation by water from Peru to the United States, has violated the 46 USC Chapter 41102(c) of the Shipping Act and the more recent Interpretive Rule issued by and under the jurisdiction of the Federal Maritime Commission as follows:
- a. Charging pre-delivery detention charges for delivery delays due their own inability to find trucks to deliver cargo in timely manner under Carrier Haulage.
 - b. Failing to authorize extended free time for their delivery delays, causing pre-delivery detention charges to accrue to the benefit of their account.
 - c. Upon information and belief that Respondent has also profited by their arrangement with the terminal to share in demurrage charges collected by the terminal, and thereby had further financial reason to decline extending free time.
 - d. Allowing demurrage charges to accrue, and assessing such demurrage charges, during periods when the terminal was closed for two days for winter storms, and other days the terminal was closed, specifically ignoring the Interpretive Rule that states the practice of 'once in demurrage, always in demurrage' would be considered unreasonable.

IV. All details of the charges in dispute are provided on attached spreadsheet listing 4 separate Bills of Lading, for 4 containers, with multiple invoices assessed for each. See attached summary spreadsheet of all charges.

V. The actions (and inactions) of **Respondent**, contracted to move cargo on Port to Door basis, that resulted in \$ 21,468 of detention and demurrage charges because of their own failure to effect delivery in a timely manner, are unreasonable, and a violation 46 USC Chapter 41102(c) of the Shipping Act of 1984 and the interpretive Rule.

VI. **Claimant** was not party to the set-up, booking, freight payment, or transportation of the goods, but instead was acting as Customs Broker only in the transaction. This service involved the outlay of all collect charges, and once demurrage charges were invoked, the prepayment of such charges to gain freight release. The consignee, purchased the cargo under DAP Incoterms, freight prepaid to door, and has therefore disputed these charges as not for their account.

Claimant advanced the charges to stop them from further accruing at their daily and escalating rate, despite knowing they were illegitimately assessed, and remains unreimbursed in the amount of \$ 21,468.00. Consignee has instructed Claimant to dispute these charges on their behalf, and has provided an Assignment of Claim document to that effect.

VII. The undersigned authorize the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in subpart S (46 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission review.

July 29, 2021



Richard J. Roche

VP International Transportation

VERIFICATION

State of New York, County of Onondaga

being first duly sworn on oath deposes and says that he or she is The claimant [or if a firm, association, or corporation, state the capacity of the affiant] and is the person who signed the foregoing claim, that he or she has read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, affiant believes to be true.



DEBRA H. SANDERS
Notary Public - State of New York
No. 01SA6309212
Qualified in Onondaga County
My Commission Expires August 4, 2022

Subscribed and sworn to before me, a notary public in and for the State of New York, County of Onondaga, this 29th day of July, 2021

(Notary Public)

My Commission expires,

8/4/2022

Small Claim Form for Informal Adjudication
Federal Maritime Commission, Washington, DC.

Informal Docket No. _____

Mohawk Global Logistics Corp. DBA Mohawk Global Logistics (Claimant)

vs.

MSC Mediterranean Shipping Company (USA) INC. as agent for
Mediterranean Shipping Company, S.A., Geneva (Respondent)

Memorandum From Claimant

Claimant is a USA Customs Broker responsible for customs clearance service in the United States and was appointed in 2020 to perform such services by Atlantic Capes Fisheries Inc of Fall River, Ma (hereafter Consignee) for their imports. Consignee contracted with their supplier in Peru (hereafter Shipper) to ship 4 containers of frozen scallops from Paita, Peru to their destination facility in Fall River, MA. Shipper contracted MSC (Respondent) to transport 4 containers from Paita, Peru to Fall River, MA on Port to Door Basis, freight prepaid.

Claimant received email notifications from Respondent on December 9 & 10, 2020, announcing each of the 4 containers had collect charges on them, however Arrival Notices (invoices) for each of the 4 containers were not received. Claimant then emailed Respondent for 5 days in row requesting arrival notices be sent, with no response. Claimant escalated the issue to Respondent's management team on December 15, the fifth day (also last free day) to send the invoices for the containers. It was then determined Respondent was using an improper email address and arrival notices were finally received.

The tardy production of arrival notices notwithstanding, Claimant cleared the outstanding collect charges same day, within free time, however, Respondent could not deliver cargo the next day as requested. In fact, even though being promised quicker delivery dates, Respondent could not deliver cargo for 2 weeks, citing lack of trucking availability.

Since delivery of the containers were the responsibility of the Respondent under their port to door bill of lading (carrier haulage), and delivery was delayed, by their admission, due to lack of available trucks, Claimant asked Respondent to arrange for extension of free time on terminal, but those requests were denied.

As Respondent set up earlier delivery dates, demurrage was advanced by Claimant, only to find out their trucking fell through again, and more demurrage would be incurred, thus accounting for multiple invoices paid to the terminal for each container.

On Friday, December 18, Respondent advised delivery for December 28, citing the consignee could not take the cargo any sooner. This did not ring true to Claimant who checked with consignee that same day and was advised they could take delivery as soon as the next working day, Monday, December 21.

When Claimant confronted Respondent with this information, Claimant was instructed to “...*just please take care of the demurrage and detention*” which was again paid in advance. This became a disputed issue in correspondence with Respondent after the fact.

Respondent was delivering cargo to others but was in no rush to deliver these containers (having denied Claimant free time extension), and thereby standing to collect another 10 days of demurrage. The Respondent was disincentivized to deliver the containers at the earliest opportunity once they had found an excuse to decline extending free time, for example, the mis-delivery of the arrival notices. Then, under their doctrine of 'once in demurrage, always in demurrage', in disregard of the Interpretive rule, they continued to charge demurrage even when the terminal was closed for 2 days with a winter storm.

The Interpretive Rule states: *"Demurrage and detention are valuable charges when applied in ways that incentivize cargo interests to move cargo promptly from ports and marine terminals"*. It goes on to say *"when incentives such as demurrage and detention no longer function because shippers are prevented from picking up cargo or returning containers within time allotted," [absent extenuating circumstances], "charges should be suspended."* In this case, Claimant could not be incentivized by demurrage or detention charges at all because final delivery was the responsibility of Respondent who was unable to perform the service. Respondent did not apply the concepts of the Interpretive Rule that demurrage and detention should be suspended when Claimant cannot be incentivized to deliver the containers any sooner. Free time should have been extended by Respondent and their contracted terminal under these and the extenuating circumstances.

All details of the charges in dispute are provided on attached spreadsheet listing 4 separate Bills of Lading, for 4 containers, with detention charges and multiple demurrage invoices assessed for each. See attached.

The actions (and inactions) of Respondent, contracted to move cargo on Port to Door basis, that resulted in \$ 21,468 of detention and demurrage charges because of their own failure to effect delivery, are unreasonable, and a violation 46 USC Chapter 41102(c) of the Shipping Act of 1984 and the Interpretive Rule.

Claimant was not party to the set-up, booking, freight payment, or transportation of the goods, but instead was acting as Customs Broker only in the transaction. This service involved the outlay of all collect charges, and once demurrage charges were invoked, the prepayment of such charges to gain freight release.

The consignee, purchased the cargo under DAP Incoterms, freight prepaid to door, and has therefore disputed these charges as not for their account. Claimant advanced the charges to stop them from further accruing at their daily and escalating rate, despite knowing they were illegitimately assessed, and remains unreimbursed in the amount of \$ 21,468.00.

MSC Demurrage and Detention charges under Carrier Haulage

MBL Number	Ctr Number	Detention	Invoice Number	LFD	Thru date	Paid To	Amount	Demurrage	Thru Date	Invoice No.	Paid to	Amount
MEDUL2901048	TTNU8065074	Det	NYC2012759959T	15-Dec	23-Dec	MSC	\$1,450	Demurrage	23-Dec	544209	Terminal	\$3,643.00
								Demurrage	16-Dec	542753	Terminal	\$404.00
MEDUL2901063	GESU9376550	Det	NYC2012759959T	15-Dec	23-Dec	MSC	\$1,450	Demurrage	23-Dec	544212	Terminal	\$3,643.00
								Demurrage	16-Dec	542755	Terminal	\$404.00
MEDUL2901121	CRLU1354247	Det	NYC2012759959T	15-Dec	23-Dec	MSC	\$1,450	Demurrage	23-Dec	544198	Terminal	\$3,643.00
								Demurrage	16-Dec	542747	Terminal	\$404.00
MEDUL2919032	MEDU9127703	Det	CHI2012229644T	16-Dec	21-Dec	MSC	\$805	Demurrage	23-Dec	544307	Terminal	\$3,643.00
MEDUL2919032	MEDU9127703	Det	CHI2012228225T	15-Dec	16-Dec	MSC	\$125	Demurrage	16-Dec	542758	Terminal	\$404.00

Detention paid to MSC: \$5,280

Demurrage pad to Terminal: \$16,188.00

Grand Total: \$21,468.00

From: [Roche, Rich](#)
To: [Roche, Rich](#)
Subject: MSC Small Claims attachments
Date: Thursday, July 29, 2021 3:01:37 PM
Attachments: [image001.png](#)
[image008.png](#)
[image010.png](#)
[image012.png](#)
[image014.png](#)
[image018.png](#)
[image022.png](#)
[image015.png](#)
[image017.png](#)
[image019.png](#)
[image021.png](#)
[image023.png](#)
[image025.png](#)
[MSC D&D under Carrier Haulage.xlsx](#)
[NYC2012759959T.pdf](#)
[PORNEW01 \\$3643.pdf](#)
[PORNEW01 \\$404.pdf](#)
[PORNEW01 \\$3643\[2\].pdf](#)
[PORNEW01 \\$404\[2\].pdf](#)
[PORNEW01 \\$3643\[3\].pdf](#)
[PORNEW01 \\$404\[3\].pdf](#)
[RE NEED DETDEM 3x 40HR Fall River MA 02720.msg](#)
[RE NEED 4 ARRIVAL NOTICES!!!.msg](#)
[CHI2012229644T.pdf](#)
[PORNEW01 \\$404\[4\].pdf](#)
[CHI2012228225T.pdf](#)
[PORNEW01 \\$3643\[4\].pdf](#)
[RE NEED DETDEM 3x 40HR Fall River MA 02720.msg](#)
[FW NEED DETDEM 3x 40HR Fall River MA 02720.msg](#)
[MEDUL2901063.pdf](#)
[MEDUL2901048.pdf](#)
[MEDUL2919032.pdf](#)
[MEDUL2901121.pdf](#)
[CADRS FMC Form 33 MSC.pdf](#)
[FW Inbound containers to Ice Cube.msg](#)
[Mohawk Logistics.pdf](#)

Small Claims - case email correspondence included in below string.

From: Roche, Rich
Sent: Tuesday, February 2, 2021 5:37 PM
To: jeff.buirge@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Hi Jeff,

Re: \$21,468.00 Demurrage and Detention charges.

I sent you this issue first in December. I have since pieced together the entire story for you. It boils down to 4 x 40 Reefers that we contacted MSC to move to door Boston under Carrier Haulage. MSC sent notification to a general mailbox at Mohawk that we did not receive, and at the same time MSC did not answer our numerous emails asking for arrival notices that we knew we were missing. Then

MSC could not coordinate power. We ended up paying detention and demurrage charges of \$21,468.00 for the 4 containers (see spreadsheet summary). We are asking for mitigation if not full refund of the charges. The cause of the delays were well in the control of MSC if documents had been sent to us accurately/timely, or our emails responded to timely. The trucking issue we understand is tough, but we hired MSC to deliver, and MSC should not also be able to profit from delays caused by yourselves, notwithstanding the truck availability problems also exacerbated by the MSC delays as we got closer to the holidays. I don't want to even get into the last line of the timeline below.

Timeline

9-Dec Received email from Dorota.Mazur@msc.com that Collect Charges were due on MEDUL2919032
9-Dec emailed dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com asking for Arrival Notice for MEDUL2919032, no response
10-Dec Received email from Dorota.Mazur@msc.com that Collect Charges were due on MEDUL2901048, MEDUL2901063 & MEDUL2901121
10-Dec emailed dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com asking for Arrival Notice for MEDUL2901048, MEDUL2901063 & MEDUL2901121, no response
11-Dec follow up email asking for Arrival Notice and amount of Collect charges for all 4 BL's sent to dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com, no response
12-Dec follow up email asking for Arrival Notice and amount of Collect charges for all 4 BL's sent to dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com, no response
15-Dec follow up email asking for Arrival Notice and amount of Collect charges for all 4 BL's sent to dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com, no response
15-Dec e/m MSC Import managers gaia.sutti@msc.com & lydia.miner@msc.com for help
15-Dec Lydia Miner responded that all Arrival Notices were sent to info@mohawkglobal.com and could be retrieved at mymsc.com
15-Dec None of the 4 shipments show up on MYMSC.com
15-Dec DQ found the Arrival Notices in info@ mailbox
15-Dec Mohawk wired Collect fees to MSC and notified Lydia and Gaia
15-Dec Last Free Day
16-Dec Import Intermodal Manager Laura Cappiello took over and advised she'll let us know how much demurrage to pay on 12/17
16-Dec Laura Cappiello denied any demurrage and Detention relief
16-Dec Laura Cappiello advised earliest she can pick up the containers is 12/23
18-Dec Laura Cappiello tells me the consignee can't accept deliveries until 12/28
18-Dec I contacted consignee and they had availability to receive as early as 12/21

Our client is furious over the poor service and the price tag. They have asked us to take this up with FMC complaint against MSC for the excessive amount of demurrage and detention forced upon them. We would rather not go that route, but would need to come back with a decent settlement on these charges that could have, and should have been prevented.

As you know, I worked on the FMC's innovation teams with Paolo Magnani that resulted in Fact Finding 28 and the new interpretive rule from FMC on application of Demurrage and Detention. If you need to take this to his level, then please do so. Our client is dead serious about wanting to pursue this with the FMC which I am sure Paolo would prefer not to do. Neither do I.

Your acknowledgement of this email and any comments would be greatly appreciated.

Regards,
Rich

From: Roche, Rich
Sent: Thursday, January 28, 2021 4:34 PM
To: jeff.buirge@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Hi Jeff,

RE:
MEDUL2901048 TTNU8065074 On 12/28
MEDUL2901063 GESU9376550 On 12/24
MEDUL2901121 CRLU1354247 On 12/24

It looks like we need to pick up where we left off a month ago on this. We are asking for some commercial consideration on the charges we had to pay below.

Regards,
Rich

From: Roche, Rich
Sent: Tuesday, December 22, 2020 12:05 PM
To: jeff.buirge@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

OK

From: jeff.buirge@msc.com <jeff.buirge@msc.com>
Sent: Tuesday, December 22, 2020 11:59 AM
To: Roche, Rich <RRoche@mohawkglobal.com>
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

I have a call at noon, will try you around 1:30PM!!

Jeff Buirge

District Sales Manager
Ohio Valley (including Western to Central PA) and Western NY

Cell # (412) 302-6533

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
for the real world

420 Fifth Avenue, New York, NY, 10018 USA

Website: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva



From: Roche, Rich <RRoche@mohawkglobal.com>
Sent: Tuesday, December 22, 2020 11:58 AM
To: Jeff Buirge (MSC USA) <jeff.buirge@msc.com>
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Jeff,

Any time. Either day.

From: jeff.buirge@msc.com <jeff.buirge@msc.com>

Sent: Tuesday, December 22, 2020 11:17 AM

To: Roche, Rich <RRoche@mohawkglobal.com>

Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Rich are you available to talk today or tomorrow, don't want to bother you if you are on Holiday?

Jeff Buirge

District Sales Manager

Ohio Valley (including Western to Central PA) and Western NY

Cell # (412) 302-6533

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for the real world

420 Fifth Avenue, New York, NY, 10018 USA

Website: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva



From: Jeff Buirge (MSC USA)
Sent: Tuesday, December 22, 2020 7:50 AM
To: Roche, Rich <RRoche@mohawkglobal.com>
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Rich,

I will call you late this AM on this and your voicemail to me yesterday...Is 11:00AM OK?

I was on a conference call yesterday when you called, trying to explain to customer about serious space issues to the US..

LOL..seems like that is 70% of what I do now...look for space and containers for customers.

Thanks for your support this year...I KNOW your team was looking to give more to MSC, but we have to perform a bit better, and the equipment issue is a tough one..

Jeff Buirge

District Sales Manager
Ohio Valley (including Western to Central PA) and Western NY

Cell # (412) 302-6533

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
for the real world

420 Fifth Avenue, New York, NY, 10018 USA

Website: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

A picture containing text, sign? ? Description automatically generated



From: Roche, Rich <RRoche@mohawkglobal.com>
Sent: Friday, December 18, 2020 10:23 AM
To: Jeff Buirge (MSC USA) <jeff.buirge@msc.com>
Subject: FW: NEED DET/DEM 3x 40HR Fall River, MA 02720

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Jeff,

Can we have your feedback on this? Is there a commercial solution available here?

Thanks,
Rich

From: laura.cappiello@msc.com <laura.cappiello@msc.com>
Sent: Thursday, December 17, 2020 9:34 PM
To: Diamond, Chris <cdiamond@mohawkglobal.com>; jeff.buirge@msc.com; Roche, Rich <RRoche@mohawkglobal.com>
Cc: Quinn, Don <DQuinn@mohawkglobal.com>; Mullin, Laura <lmullin@mohawkglobal.com>; gaia.sutti@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Chris

ANs are available for download on mymsc.com . we have created tools to avoid you to send emails to the folder

We have the online tools for a reason above all when volumes are spiking and getting a timely reply is harder

MSC Origin input the info they were provided by shipper. So If you have any doubt pls question shipper not us

Charges stands and will need to be paid on time to make sure we secure the pick up.
Thnaks

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue,10018,New York, NY,USA

T:+1 212-764-4800 Ext. 33393 F: +1 212-827-1636 W : www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

***** PLEASE READ BELOW *****

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com

- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITamend@msc.com

-

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Thursday, December 17, 2020 5:50 PM
To: Laura Cappiello (MSC USA) <laura.cappiello@msc.com>; Jeff Buirge (MSC USA) <jeff.buirge@msc.com>; Roche, Rich <RRoche@mohawkglobal.com>
Cc: Quinn, Don <DQuinn@mohawkglobal.com>; Mullin, Laura <lmullin@mohawkglobal.com>; Gaia Sutti (MSC USA) <gaia.sutti@msc.com>
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Laura,
 We're just going in circles at this time. But, info@mohawkglobal.com is a general email just as info@msc.us is.

Are you saying the shipper provided MSC the email address info@mohawkglobal.com ? That is not true. The shipper does not know that email exists.

And still no answers why MSC's Helpmeimport nor Arrivalnotices departments repeatedly ignored my requests.

Chris

From: laura.cappiello@msc.com <laura.cappiello@msc.com>
Sent: Thursday, December 17, 2020 5:35 PM
To: Diamond, Chris <cdiamond@mohawkglobal.com>; jeff.buirge@msc.com; Roche, Rich <RRoche@mohawkglobal.com>
Cc: Quinn, Don <DQuinn@mohawkglobal.com>; Mullin, Laura <lmullin@mohawkglobal.com>; gaia.sutti@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Chris

I suggest you to bring up you concerns to shipper. info@mohawkglobal.com, was provided at origin
Msc does not know this may be unmonitored or not correct

You know info@msc.us is a general email.

Intermodal does not send a/n as we have no access to it. Helpme import was in copy as correct party
We were ready upon discharge to get these moving

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue,10018,New York, NY,USA

T:+1 212-764-4800 Ext. 33393 F: +1 212-827-1636 W : www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

***** PLEASE READ BELOW *****

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**,please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITamend@msc.com

-
* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**
** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Thursday, December 17, 2020 5:28 PM
To: Jeff Buirge (MSC USA) <jeff.buirge@msc.com>; Roche, Rich <RRoche@mohawkglobal.com>
Cc: Quinn, Don <DQuinn@mohawkglobal.com>; Mullin, Laura <lmullin@mohawkglobal.com>; Laura Cappiello (MSC USA) <laura.cappiello@msc.com>; Gaia Sutti (MSC USA) <gaia.sutti@msc.com>
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Thanks Jeff. That is correct. Arrival Notices were emailed to info@mohawkglobal.com, do you think you would get your hands on an email sent to info@msc.us?

So, yes that is on Mohawk that we didn't retrieve the Arrival Notices from the info@ email address until LFD 12/15.

My issue is that starting 12/9 through 12/15 I emailed Dorota, US038-HelpMeImport@msc.com and us038-arrival.notices@msc.com asking for the Arrival Notices be sent to me and not a single response from anyone. Not Once!

Finally I reached out to Gaia Sutti and Lydia Miner on 12/15 and they responded back that the Arrival Notices were sent to info@mohawk.com

A simple response from anyone at MSC anytime before the last free day would've saved our client \$10,000 to \$20,000 in storage/demurrage.

Chris Diamond
Operations Manager
T (508) 257-1052 | **M** (617) 820-3785

1165 Washington Street | Hanover, MA | 02339
mohawkglobal.com | OTI No.003952NF

From: jeff.buirge@msc.com <jeff.buirge@msc.com>
Sent: Thursday, December 17, 2020 1:44 PM
To: Diamond, Chris <cdiamond@mohawkglobal.com>; Roche, Rich <RRoche@mohawkglobal.com>
Cc: Quinn, Don <DQuinn@mohawkglobal.com>; Mullin, Laura <lmullin@mohawkglobal.com>;
laura.cappiello@msc.com; gaia.sutti@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Chris, Rich,

I have passed this on to MSC colleagues, and they have advised the following:

Hello Jeff,

Yes they are responsible

They claimed they never received arrival notice (as per attached explains same)

There were total of 4 and they paid only on 12.15 same day on LFD.

Terminals are closed today and closed earlier yesterday

Now truck availability is tight, and given these are reefers I cannot prepull to save money

Appt were set for 12.24 and 12.28. will pick them all on 12.23.

Customer has to pay

Please follow this link for a [full list of contacts at our offices in the United States](#)

Import & Export Intermodal Manager New York

*MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
420 Fifth Avenue,10018,New York, NY,USA*

Jeff Buirge

District Sales Manager

Ohio Valley (including Western to Central PA) and Western NY

Cell # (412) 302-6533

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
for the real world

420 Fifth Avenue, New York, NY, 10018 USA

Website: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

A picture containing text, sign? ? Description automatically generated



From: Diamond, Chris <cdiamond@mohawkglobal.com>

Sent: Thursday, December 17, 2020 10:12 AM

To: Roche, Rich <RRoche@mohawkglobal.com>; Jeff Buirge (MSC USA) <jeff.buirge@msc.com>

Cc: Quinn, Don <DQuinn@mohawkglobal.com>; Mullin, Laura <lmullin@mohawkglobal.com>

Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Attached are MSC's invoices for 3 of the 4 containers. In addition to these invoices, PNCT is looking for \$404 per day per container.

From: Roche, Rich <RRoche@mohawkglobal.com>

Sent: Thursday, December 17, 2020 7:32 AM

To: jeff.buirge@msc.com

Cc: Quinn, Don <DQuinn@mohawkglobal.com>; Diamond, Chris <cdiamond@mohawkglobal.com>; Mullin, Laura <lmullin@mohawkglobal.com>

Subject: FW: NEED DET/DEM 3x 40HR Fall River, MA 02720

Jeff,

The below deliveries are carrier haulage that MSC accepted on your MBLs. Now MSC is asking for 7 days Demurrage / Detention on these. This is crazy. You have not delivered cargo per contract of carriage. D&D should be absorbed by MSC.

Please advise urgently.

Sincerely,
Rich

Rich Roche

Vice President International Transportation

T (315) 552-5480 | **M** (315) 243-3200

123 Air Cargo Road | North Syracuse, NY | 13212

mohawkglobal.com | OTI No.003952NF

From: laura.cappiello@msc.com <laura.cappiello@msc.com>
Sent: Wednesday, December 16, 2020 3:21 PM
To: Diamond, Chris <cdiamond@mohawkglobal.com>; US038-nydetention@msc.com;
marco.sidoti@msc.com
Cc: dorota.mazur@msc.com
Subject: NEED DET/DEM 3x 40HR Fall River, MA 02720

Hello **Chris**

Appt are per below. will additional Detention and demurrage paid till day prior pick up
Therefore these will be all picked up 12.23

MEDUL2901048 TTNU8065074 On 12/28

MEDUL2901063 GESU9376550 On 12/24

MEDUL2901121 CRLU1354247 On 12/24

NYDETENTION/Marco

Pls help to issue invoice thru 12.23 for a/m

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue,10018,New York, NY,USA

T:+1 212-764-4800 Ext. **33393** F: +1 212-827-1636 W : www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

***** PLEASE READ BELOW *****

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITamend@msc.com

-
* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**
** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



From: Laura Cappiello (MSC USA)
Sent: Wednesday, December 16, 2020 10:31 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>; Victoria Jackson (MSC USA) <victoria.jackson@msc.com>
Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Lydia Miner (MSC USA) <lydia.miner@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Chris
NYDETENTION will release invoice based on my okay
We wont be able to pick up today
Im waiting on truck

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue,10018,New York, NY,USA

T:+1 212-764-4800 Ext. 33393 F: +1 212-827-1636 W : www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

***** PLEASE READ BELOW *****

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to

IntermodalImportTruckNY@msc.com

- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITamend@msc.com

-

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***

Federal Maritime Commission

Dispute Resolution Services Request -Cargo

Return to CADRS@fmc.gov, fax 202-275-0059, or CADRS, 800 N. Capitol St., NW, Washington, DC 20573

Person Requesting Assistance			
Name: Rich Roche			
Business Name: Mohawk Global Logistics			
Type of business (check one): ☐ VOCC ☐ NVOCC ☐ FF ☐ MTO ☐ Importer ☐ Exporter ☒ Customs Broker ☐ Other			
Current Address: 123 Air Cargo Road			
City: N, Syracuse	State/Province: NY	ZIP/Postal Code: 13212	Country: USA
Preferred Phone Number (9AM-5PM EST): (315) 243-3200		E-Mail: rroche@mohawkglobal.com	
Name of attorney (if any):		Attorney's phone number:	
Attorney's email address (if any):			
Dispute is With			
Business Name: MSC			
Address: 420 Fifth Ave			
Type of business (check one): ☒ VOCC ☐ NVOCC ☐ FF ☐ MTO ☐ Importer ☐ Exporter ☐ Customs Broker ☐ Other			
City: New York	State/Province: NY	ZIP/Postal Code: 11018	Country: USA
Phone: (212) 764-4800	E-Mail: laura.cappiello@msc.com	Fax: (212) 764-4800 x 33393	
Have you contacted anyone at this company about your complaint? Yes			
If so, please indicate who: Laura Capiello		What is the best way to contact: email	
Nature of Dispute			
Type of Shipment (check one): ☐ Household Goods ☒ Commercial Cargo			
Import to U.S.? ☒		Export from U.S.? ☐	
This dispute is related to (check one): ☒ Freight rate ☒ Demurrage/Detention/Per diem ☐ Non-Delivery ☐ Loss/damage ☐ Other			
If other, please explain:			
Date of transaction: December 2020			
Amount in controversy: \$ 21,468.00			
Desired solution: Refund of \$ 21,468.00			
How did you hear about FMC/CADRS? Commissioner Dye			
Please explain your dispute and attach all relevant documents (e.g.: Bills of Lading, Shipping Contracts, Booking Confirmations, Correspondence, etc...)			
Mohawk was listed as Notify Party on 4 MBLs where MSC was responsible for delivery to consignee's door in Boston under Carrier Haulage. When no arrival notices were received by Mohawk by December 9, we contacted MSC for these invoices so we could clear charges due, but received no reply even though requests were sent 5 days in a row. On the fifth day (last free day), we escalated to import managers for resolution. They responded and we made payment the same day. On the following day (Dec 16) we started coordinating delivery with Laura Capiello but were presented with demurrage charges even though Laura could not find truckers to deliver. This continued daily into Christmas week with delivery finally made two weeks after Last Free Day. Through we requested extended free time, our requests were denied, and we had to advance a total of \$ 21,468 in demurrage and detention charges. In all, Mohawk was invoiced for two days the terminal was closed due to weather, the Christmas holiday and two weekends, along with the other working days that MSC simply could not find truckers to deliver the cargo. These charges are patently unfair, and represent an egregious abuse by MSC in conflict with the Interpretive Rule issued by the FMC in 2020. The charges should be refunded in full.			
Affirmation: I understand that the information that I have provided is for the purpose of convening the use of confidential ombuds or mediation services to resolve an ocean shipping dispute. As such, I authorize CADRS to contact the named party(ies) to engage in efforts to seek resolution to this matter. Also, in the event that this matter falls outside of FMC jurisdiction, I authorize CADRS to refer my request for assistance to the appropriate governmental agency possessing jurisdiction over my complaint. Unless otherwise marked confidential in this intake form or attached documents, I authorize CADRS to disclose information provided in the intake form to the other named party(ies) for the purpose of exploring resolution to this dispute. I understand and agree that CADRS's staff will act as a neutral third party in my ombuds or mediation matter and as such CADRS cannot provide me with legal representation or advice. I also understand and agree that ombuds services and mediation are voluntary processes and that any party and/or CADRS may decline or terminate ombuds or mediation services at any time. I affirm that the information provided in this intake form, to the best of my knowledge, is true and accurate.			
Signature:			Date: 3/18/2021

A Federal agency may not conduct or sponsor, and a person is not required to respond to, nor shall a person be subject to a penalty for failure to comply with a collection of information subject to the requirements of the Paperwork Reduction Act unless that collection of information displays a current valid OMB Control Number. The OMB Control Number for this information collection is 3072-0072. Public reporting for this collection of information is estimated to be approximately 10 minutes per response, including the time for reviewing instructions, gathering the data needed, and completing and reviewing the collection of information. All responses to this collection of information are voluntary, and will be provided confidentiality to the extent allowed by the Freedom of Information Act (FOIA) and the Alternative Dispute Resolution Act (ADRA). Send comments regarding the burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden to: Information Collection Clearance Officer, Federal Maritime Commission, 800 N. Capitol Street, NW, Washington, DC 20573



MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
As agent for MSC Mediterranean Shipping Company S.A., Geneva
420 5th Avenue New York, NY 10018

Phone: (212) 764-4800 Fax: (212) 764-6599

Printed: 12/16/2020 - 9:27:48AM

INVOICE

Page 1 of 1

INVOICE Number:	CHI2012228225T	Payment Method:	Check	Issuing Office:	CO
Doc Date :	12/16/2020	Payment Due Date:	12/16/2020	Requested By:	Robert Ristau

Bill To:	MOHAWK GLOBAL LOGISTICS 1165 WASHINGTON STREET Hanover, MA 02339
-----------------	--

Mail To:	MOHAWK GLOBAL LOGISTICS 1165 WASHINGTON STREET Hanover, MA 02339
-----------------	--

Invoice Comments:	LFD 12/15 thru 12/16
--------------------------	----------------------

Charge	Charge Description	Total
DETENTION IMPORT	BL : MEDUL2919032 Contr No: MEDU9127703 Depot : Port Newark Container Terminal	\$125.00

--	--	--

Pay Invoice# CHI2012228225T		
Total invoiced:		\$125.00

Pay Invoice Online:
<https://e-pay.mymsc.com/iPayment/>

Invoice Note:

OR

**To Pay Invoice by Company Check,
Please make check payable to:
MSC MEDITERRANEAN SHIPPING
COMPANY (USA) INC. As agent for
MSC Mediterranean Shipping
Company S.A., Geneva**



MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
As agent for MSC Mediterranean Shipping Company S.A., Geneva
420 5th Avenue New York, NY 10018

Phone: (212) 764-4800 Fax: (212) 764-6599

Printed: 12/21/2020 - 11:21:57AM

INVOICE

Page 1 of 1

INVOICE Number:	CHI2012229644T	Payment Method:	Check	Issuing Office:	CO
Doc Date :	12/21/2020	Payment Due Date:	12/21/2020	Requested By:	Thomas Sullivan

Bill To:	MOHAWK GLOBAL LOGISTICS P.O. BOX 3065 Syracuse, NY 13212
-----------------	--

Mail To:	MOHAWK GLOBAL LOGISTICS P.O. BOX 3065 Syracuse, NY 13212
-----------------	--

Invoice Comments:	LFD 12/16 to 12/21 - dorota.mazur@msc.com
--------------------------	---

Charge	Charge Description	Total
DETENTION IMPORT	BL : MEDUL2919032 Contr No: MEDU9127703 Depot : Port Newark Container Terminal	\$805.00

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PAY INVOICE# CHI2012229644T		
Total invoiced:		\$805.00

Pay Invoice Online:
<https://e-pay.mymsc.com/iPayment/>

Invoice Note:

OR

**To Pay Invoice by Company Check,
Please make check payable to:
MSC MEDITERRANEAN SHIPPING
COMPANY (USA) INC. As agent for
MSC Mediterranean Shipping
Company S.A., Geneva**

From: [Diamond, Chris](#)
To: [Jeff Bolton](#); [Steve Weaver](#)
Cc: [Quinn, Don](#); [Roche, Rich](#)
Subject: FW: Inbound containers to Ice Cube
Date: Wednesday, April 7, 2021 2:45:58 PM
Attachments: [image018.png](#)
[image020.png](#)
[image021.png](#)
[image022.png](#)
[image023.png](#)
[image024.png](#)
[image025.png](#)
[image026.png](#)
[image003.png](#)
[image004.png](#)
[image001.png](#)
[image002.png](#)

Please see email from Ice Cube regarding delivery dates.

From: Matt Andrade <mandrade@icecubecoldstorage.com>
Sent: Thursday, December 17, 2020 8:27 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>
Cc: Bob O'Connor <boconnor@icecubecoldstorage.com>; Andrea Neal <aneal@icecubecoldstorage.com>
Subject: RE: Inbound containers to Ice Cube

Chris,

The best we can do is take 3 of them on the 21st at 6:00am, 8:00am, and 10:00am. We will get back to you today or tomorrow on the last container.

Best Regards,



Matt Andrade

Vice President of Sales
Ice Cube Cold Storage

☐ Direct 774-357-5410 ext. 355 | Cell 508-498-1797

☐ www.IceCubeColdStorage.com

@ mandrade@icecubecoldstorage.com

☐ 451 Currant Road, Fall River, MA 02720



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Wednesday, December 16, 2020 3:49 PM
To: Matt Andrade <mandrade@icecubecoldstorage.com>
Subject: RE: Inbound containers to Ice Cube

Hi Matt,

I'm having an awful time with Med Shipping on 4 containers coming up your way for Atlantic Capes.

Med Shipping is telling me that they cannot deliver these containers until 12/23 and 12/28 while racking up \$10,000 to \$20,000 in storage/demurrage charges.

PO# 49834 CRLU1354247
PO# 50334 TTNU8065074
PO# 49835 GESU9376550
PO# 52357 MEDU9127703

Can you let me know if 12/23 and 12/28 are the earliest you can receive these or was this the request of their trucker?

Thanks,

Chris Diamond
Operations Manager

T (508) 257-1052 | **M** (617) 820-3785
1165 Washington Street | Hanover, MA | 02339
mohawkglobal.com | OTI No.003952NF

From: Matt Andrade <mandrade@icecubecoldstorage.com>

Sent: Thursday, November 12, 2020 11:13 AM

To: Diamond, Chris <cdiamond@mohawkglobal.com>

Subject: RE: Inbound containers to Ice Cube

Chris,

Thanks for the update.

They can either call us directly at 774-357-5410 or email the appointment details to customerservice@icecubecoldstorage.com.

Best Regards,



Matt Andrade

Vice President of Sales
Ice Cube Cold Storage

☐ Direct 774-357-5410 ext. 355 | Cell 508-498-1797

☐ www.IceCubeColdStorage.com

@ mandrade@icecubecoldstorage.com

☐ 451 Currant Road, Fall River, MA 02720



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Thursday, November 12, 2020 11:02 AM
To: Matt Andrade <mandrade@icecubecoldstorage.com>
Subject: RE: Inbound containers to Ice Cube

Hi Matt,

2 containers are arriving into NY today.

Hamburg Sud is arranging the deliveries. They or their trucker will be contacting your staff to make appointments.

Thanks,

Chris Diamond
Operations Manager
T (508) 257-1052 | M (617) 820-3785
1165 Washington Street | Hanover, MA | 02339
mohawkglobal.com | OTI No.003952NF

From: Matt Andrade <mandrade@icecubecoldstorage.com>
Sent: Thursday, November 12, 2020 10:51 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>
Subject: FW: Inbound containers to Ice Cube

Chris,
Any update on these inbounds?

Best Regards,



Matt Andrade

Vice President of Sales
Ice Cube Cold Storage

☐ Direct 774-357-5410 ext. 355 | Cell 508-498-1797
☐ www.IceCubeColdStorage.com
@ mandrade@icecubecoldstorage.com
☐ 451 Currant Road, Fall River, MA 02720



From: David Shaw <DShaw@atlanticcapes.com>

Sent: Thursday, October 22, 2020 10:56 AM

To: Sandy Santos <SBergeron@atlanticcapes.com>; Chris Diamond (cdiamond@mohawkglobal.com) <cdiamond@mohawkglobal.com>; CustomerService <customerservice@icecubecoldstorage.com>

Cc: Bob O'Connor <boconnor@icecubecoldstorage.com>; Matt Andrade <mandrade@icecubecoldstorage.com>; Matt Grolnic <MGrolnic@atlanticcapes.com>; Quality Assurance <QA@atlanticcapes.com>; Jeff Bolton <JBolton@atlanticcapes.com>; Chris Brown <CBrown@atlanticcapes.com>; Tim Arruda <TArruda@atlanticcapes.com>; Flavio Biscaia <FBiscaia@atlanticcapes.com>

Subject: Inbound containers to Ice Cube

Good morning

Matt and I met with Bob O'Conner and Matt Andrade at Ice Cube and we went over the attached QC form. They will begin implementing inbound container and truckload QC's with complete details and pictures. I have also asked them to advise me of any inbound purchases that may need QC services.

Sandy

Please forward inbound breakdowns to customerservice@icecubecoldstorage.com.

Chris

Please forward (to the same address) inbound notification when you make the appt. for delivery so they can match up to the container item breakdown.

Please call me with any questions.

Thank you

David Shaw

VP Operations

dshaw@atlanticcapes.com

Atlantic Capes Fisheries, Inc.

140 Waldron Road

Fall River, MA 02720

508-990-9040 X102 Office

508-951-6964 Cell

From: Roche, Rich
To: angelo.latona@msc.com
Cc: jeff.buirge@msc.com
Subject: FW: NEED DET/DEM 3x 40HR Fall River, MA 02720
Attachments: jimage016.png
jimage000.png
jimage009.png
jimage025.png
jimage027.png
jimage031.png
jimage010.png
jimage012.png
jimage014.png
jimage017.png
jimage018.png
jimage019.png
jimage021.png
jimage024.png
jimage029.png
jimage030.png
RE NEED DETDEM 3x 40HR Fall River MA 02720.msg

Re: \$ 21,468.00 D&D Dispute

-
Angelo,

I am passing this along to you in advance of our meeting tomorrow.

There are multiple parts to this complaint. You have addressed only one piece by saying MSC notified us correctly. That is not true, but regardless, we escalated the issue (after having been ignored for 5 days) to supervisor level on Last Free Day. Once directed to where the arrival notices had been sent, we paid them that day. This is the only part of the complaint you have attempted to refute, and frankly, your argument falls short because someone at MSC sent documents to an improper email address copied from our website that is not intended for document passing. None of the documentation you sent shows that you were instructed by the Shipper, their agent, or Mohawk to use that address. In fact some of the documentation you sent shows the correct address @cdiamond that you should have used, but was not. We can argue ad nauseam whether or not this was an MSC failure, but it was positively not the only one.

The above failure notwithstanding, the real problem (you have not addressed) occurred when MSC could not find any trucks for our cargo. See email dated Dec 16 (attached) from Laura Capiello: “We wont be able to pick up today – I’m waiting on truck” and later that day: “Appt are per below. will additional Detention and demurrage paid till day prior pick up. Therefore these will be all picked up 12.23.”

Then on Dec 18 we were told the 12/23 deliveries were off and customer not take the containers until 12/28. We were in touch with customer who was ready to receive from 12 /21 onward, and confronted Laura Capiello with that information, but she responded:

*“I have already explained the issue. Drivers for these were lost
Terminal was closed early on the 16th and closed on the 17th all day.
This put a strain to truck power out there and we need enough lead time. reason Monday appt are not feasible
Im pulling these on 23rd for 28th appt at no extra costs of prepull or storage.
So just pls take care of the demurrage and msc detention”*

You are charging us detention and demurrage for days the terminal was closed, holidays, and weekends when you could not deliver the containers as promised. These were in the care of MSC to deliver, and you could not come up with truckers. On top of that, your Ms. Capiello fabricated the story that client could not take the cargo until Dec 28th and gave us attitude when we confronted her about the misinformation.

Angelo, this was some really poor customer service from MSC resulting in excessive charges of demurrage and detention that the end client refuses to pay, leaving Mohawk, as Customs Broker, holding the bag on this. We prepaid it to get the cargo delivered, but now cannot collect it based on the end customer holding MSC’s responsible for missed deliveries of the cargo.

You really need to take a look at this again. Please read the attached email.

Sincerely,

Rich Roche
Vice President International Transportation
T (315) 552-5480 | M (315) 243-3200
123 Air Cargo Road | North Syracuse, NY | 13212
mohawkglobal.com | OTI No.003952NF

From: angelo.latona@msc.com <angelo.latona@msc.com>
Sent: Tuesday, March 2, 2021 1:30 PM
To: Roche, Rich <RRoche@mohawkglobal.com>
Cc: jeff.buirge@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Dear Rich, I hope all is well. Watching TPM a lot different than face to face at the event. But, interesting topics. Regret, MSC is holding firm. They made all the necessary attempts to contact your offices. As you can see in these attachments, and the last file we sent you regarding the shipping instructions from origin. MSC states there is really nothing more they can do here. I am sorry for my late reply. I had to gather all these emails, and speak with each group. I even reached out to corp management on per diem storage. Regret there is nothing more we can do here. My apologies on the delay in responding to you.

Bes Regards

Angelo LaTona
Vice-President

MEDITERRANEAN SHIPPING COMPANY (USA) INC.
Governors Ridge Office Park
1640 Powers Ferry Rd Bldg 29 Suite 200
Marietta, GA 30067
T: +1 770 953 0037 D: +1 770 953 9492 M: +1 954 258 1729 F: +1 770 953 0381; **WWW.MSC.COM**
As Agent For MSC Mediterranean Shipping Company S.A., Geneva



www.msc.com/sot



From: Roche, Rich <RRoche@mohawkglobal.com>
Sent: Tuesday, March 2, 2021 1:17 PM
To: Angelo Latona (MSC USA) <angelo.latona@msc.com>
Cc: Jeff Buirge (MSC USA) <jeff.buirge@msc.com>
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hi Angelo,

I hope you are enjoying virtual TPM, but it certainly is not the same as being there.

It has now been two weeks since we spoke. Please advise resolution on these charges.

Sincerely,

Rich Roche
Vice President International Transportation
T (315) 552-5480 | **M** (315) 243-3200
123 Air Cargo Road | North Syracuse, NY | 13212
mohawkglobal.com | OTI No.003952NF

From: Roche, Rich
Sent: Wednesday, February 24, 2021 4:33 PM
To: angelo.latona@msc.com
Cc: jeff.buirge@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Hi Angelo,

It has been over a week since we spoke, so hoping you were able to make your case. How will this be resolved?

Thanks,
Rich

Rich Roche
Vice President International Transportation
T (315) 552-5480 | **M** (315) 243-3200
123 Air Cargo Road | North Syracuse, NY | 13212
mohawkglobal.com | OTI No.003952NF

From: Roche, Rich
Sent: Tuesday, February 16, 2021 2:10 PM
To: angelo.latona@msc.com
Cc: jeff.buirge@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Hi Angelo,

Where do we stand with our refund request for demurrage and detention on all containers I sent you per the excel sheet? You have sent details the attached for only 2 of 5 containers impacted.

Mohawk's role in this was only as Customs Broker for the importer. Here's how we see this...

The INTTRA shipping instructions you sent do not show any email address for Notify party, therefore it appears the address you used was added incorrectly by your ARRIVAL NOTICE GENERATOR. Mohawk does not give out that address for anything but sale inquiries. No documentation is transacted on that email address. It appears to me that MSC got that wrong. I call this Strike One.

Additionally, Mohawk contacted MSC customer service 5 days in a row requesting arrival notice because we had not received it. Our emails went unresponded to by your customer service team until we escalated to management on last free day on 12/15. This set MSC way behind in arranging trucking through the upcoming holiday season. This is strike 2 – 5, but will simply call it Strike Two.

We were then told by Laura Cappiello that the client could not accept deliveries until 12/28. This was completely false. Client was in a hurry to receive the cargo from December 21 onward. That was a blatant Strike Three.

Our position therefore is to request full reimbursement for both demurrage and detention charges paid.

Please advise MSC's position.

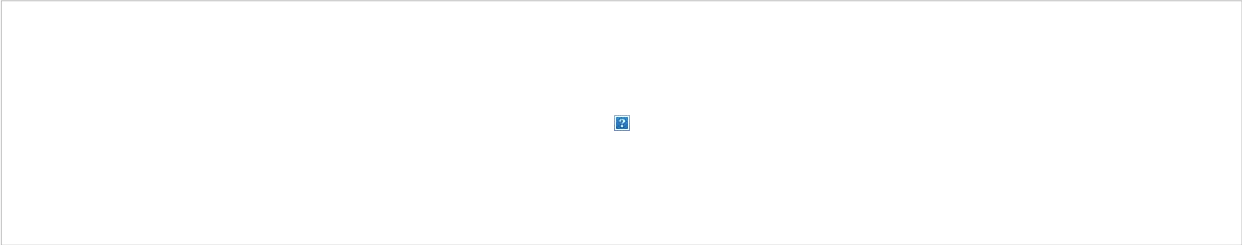
Regards,
Rich

From: angelo.latona@msc.com <angelo.latona@msc.com>
Sent: Tuesday, February 16, 2021 9:51 AM
To: Roche, Rich <R8Roche@mohawkglobal.com>
Cc: jeff.buirge@msc.com
Subject: FW: NEED DET/DEM 3x 40HR Fall River, MA 02720

Dear Rich , good morning. I wanted to circle back to this case. Please see all the events . Best Regards

Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

for the following BOLs MEDUL2805017 / MEDUL284757 the SI show that the FFW listed as NTFY MOHAWK and we sent the AN to Mohawk.



Angelo LaTona
Vice-President

MEDITERRANEAN SHIPPING COMPANY (USA) INC.
Governors Ridge Office Park
1640 Powers Ferry Rd Bldg 29 Suite 200
Marietta, GA 30067
T: +1 770 953 0037 D: +1 770 953 9492 M: +1 954 258 1729 F: +1 770 953 0381; WWW.MSC.COM
As Agent For MSC Mediterranean Shipping Company S.A., Geneva



www.msc.com/sot



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Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

 MEDITERRANEAN SHIPPING COMPANY S.A. 12-14, chemin Rieu, 1208 GENEVA, Switzerland Website : www.msc.com SCAC Code: MSCU		BILL OF LADING No. MEDUL2919032 NON-NEGOTIABLE COPY Port-to-Port" or "Combined Transport" (see Clause 1)	
SHIPPER: SOCIEDAD EXPORTADORA T&A CORDOVA S.A.C. MZA. V LOTE. 1B INT. 4 Z.I. ZONA INDUSTRIAL II PIURA - PAITA - PAITA - PERU		CARRIER'S AGENTS ENDORSEMENTS: (Include Agent(s) at POD) FCL/FCL Special contract: R08718090000036 Lloyds/Imo number = 9244881 DESTINATION AGENT ADDRESS: Mediterranean Shipping Company (USA) Inc. 420, 5th Avenue (At 37th Street) - 8th Floor US - 10018-2702 NEW YORK Phone: +1 212 764 4800, Fax: +1 212 764 8592 "The Peruvian local charges "Despacho Documentario", "Despacho de Contenedor", "Gate In/Out" are due and payable at origin by the Merchant in accordance with Carrier's terms and Conditions available at https://www.msc.com/per/contract-of-carriage/msc-peru-terms-conditions	
CONSIGNEE: This B/L is not negotiable unless marked "To Order" or "To Order of..." here. ATLANTIC CAPES FISHERIES INC 140 WALDRON ROAD FALL RIVER, MA 02720 PH: 508-990-9040			
NOTIFY PARTIES: (No responsibility shall attach to the Carrier or to his Agent for failure to notify - see Clause 20) MOHAWK GLOBAL 1165 WASHINGTON STREET, HANOVER,MA 02339 MR. CHRIS DIAMOND OPERATIONS MANAGER T (508)257-1052 M (617)820-3785 MOHAWKGLOBAL.COM			
VESSEL & VOYAGE NO. (see Clauses 8 & 9) MSC ARUSHI R. NQ047R		PORT OF LOADING PAITA, PERU	PLACE OF RECEIPT: (Combined Transport ONLY - see Clauses 1 & 5.2) XXXXXXXXXXXXXXXXXXXXXXX
BOOKING REF. (or) SHIPPER'S REF. 087LIM394161	PORT OF DISCHARGE NEW YORK, USA		PLACE OF DELIVERY: (Combined Transport ONLY - see Clauses 1 & 5.2) FALL RIVER, USA

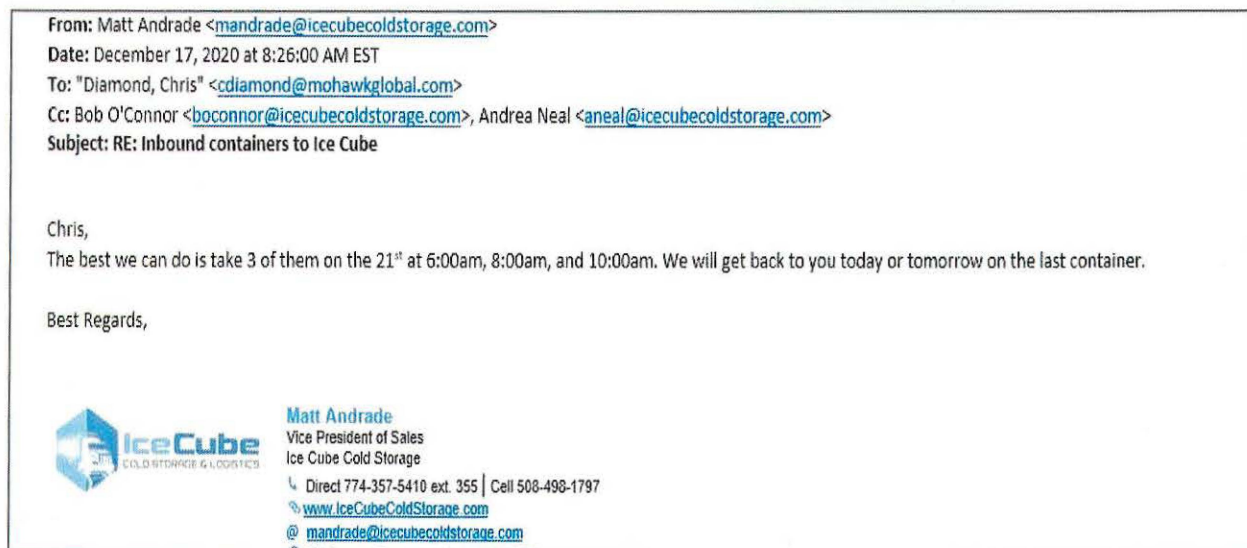
PARTICULARS FURNISHED BY THE SHIPPER - NOT CHECKED BY CARRIER - CARRIER NOT RESPONSIBLE (see Clause 14)			
Container Numbers, Seal Numbers and Marks	Description of Packages and Goods (Continued on attached Bill of Lading Rider page(s), if applicable)	Gross Cargo Weight	Measurement
MEDU9127703/40'HR TARE: 4710 kg Seal:FX13261470 Seal:009AD016680	1 x 40' CNTR(S) 1170 BOXES 35,100 LBS FROZEN SCALLOPS ROE OFF (ARGOPECTEN PURPURATUS) "FREIGHT PREPAID" THE REEFER TEMPERATURE TO BE SET AT -20 DEGREES CELSIUS IN ACCORDANCE WITH SHIPPER'S INSTRUCTIONS 1170 BOXES Temp. -20C	18270.000 kg	
TOTAL TARE: 4710.00 kg	TOTALS:	18270.000 kg	

FREIGHT & CHARGES AS PER AGREEMENT		Cargo shall not be delivered unless Freight & Charges are paid (see Clause 16).	RECEIVED by the Carrier in apparent good order and condition (unless otherwise stated herein) the total number or quantity of Containers or other packages or units indicated in the box entitled Carrier's Receipt for carriage subject to all the terms and conditions hereof from the Place of Receipt or Port of Loading to the Port of Discharge or Place of Delivery, whichever is applicable. IN ACCEPTING THIS BILL OF LADING THE MERCHANT EXPRESSLY ACCEPTS AND AGREES TO ALL THE TERMS AND CONDITIONS, WHETHER PRINTED, STAMPED OR OTHERWISE INCORPORATED ON THIS SIDE AND ON THE REVERSE SIDE OF THIS BILL OF LADING AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF AS IF THEY WERE ALL SIGNED BY THE MERCHANT. If this is a negotiable (To Order / of) Bill of Lading, one original Bill of Lading, duly endorsed must be surrendered by the Merchant to the Carrier (together with outstanding Freight and charges) in exchange for the Goods or a Delivery Order. If this is a non-negotiable (straight) Bill of Lading, the Carrier shall deliver the Goods or issue a Delivery Order (after payment of outstanding Freight and charges) against the surrender of one original Bill of Lading or in accordance with the national law at the Port of Discharge or Place of Delivery whichever is applicable. IN WITNESS WHEREOF the Carrier or their Agent has signed the number of Bills of Lading stated at the top, all of this tenor and date, and wherever one original Bill of Lading has been surrendered all other Bills of Lading shall be void.
DECLARED VALUE (only applicable if Ad Valorem Charges paid - see Clause 7.3)	CARRIER'S RECEIPT (No. of Cntrs or Pkgs rcvd by Carrier - see Clause 14.1) 1	SIGNED on behalf of the Carrier MSC Mediterranean Shipping Company S.A. MSC LIMA	
PLACE AND DATE OF ISSUE PAITA, 23/11/2020	SHIPPED ON BOARD DATE 23/11/2020		

April 8, 2021

Attn: Jeff Bolton

Please see below screen shot of my email to Mohawk Logistics dated December 20, 2020.



Best Regards,

Matt Andrade
Vice President of Sales
Ice Cube Cold Storage



MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
As agent for MSC Mediterranean Shipping Company S.A., Geneva
420 5th Avenue New York, NY 10018

Phone: (212) 764-4800 Fax: (212) 764-6599

Printed: 12/16/2020 - 5:20:44PM

INVOICE

Page 1 of 1

INVOICE Number:	NYC2012759959T	Payment Method:	Check	Issuing Office:	CO
Doc Date :	12/16/2020	Payment Due Date:	12/16/2020	Requested By:	Robert Ristau

Bill To:	MOHAWK GLOBAL LOGISTICS 1165 WASHINGTON STREET Hanover, MA 02339
-----------------	--

Mail To:	MOHAWK GLOBAL LOGISTICS 1165 WASHINGTON STREET Hanover, MA 02339
-----------------	--

Invoice Comments:	LFD 12/15 thru 12/23/Laura Cappiello (MSC USA) <laura.cappiello@msc.com>
--------------------------	--

Charge	Charge Description	Total
DETENTION IMPORT	BL : MEDUL2901048 Contr No: TTNU8065074 Depot : Port Newark Container Terminal	\$1,450.00
DETENTION IMPORT	BL : MEDUL2901063 Contr No: GESU9376550 Depot : Port Newark Container Terminal	\$1,450.00
DETENTION IMPORT	BL : MEDUL2901121 Contr No: CRLU1354247 Depot : Port Newark Container Terminal	\$1,450.00

PAY INVOICE# NYC2012759959T

Total invoiced: \$4,350.00

Pay Invoice Online:
<https://e-pay.mymsc.com/iPayment/>

Invoice Note:

OR

**To Pay Invoice by Company Check,
Please make check payable to:
MSC MEDITERRANEAN SHIPPING
COMPANY (USA) INC. As agent for
MSC Mediterranean Shipping
Company S.A., Geneva**

Terminal: Port Newark Container Terminal

Wednesday, December 16, 2020 09:16 AM

Thank you for authorizing your payment

Here is your tracking ID - **542747**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
CRLU1354247	Demurrage paid through 12/16/2020	\$404.00
Total:		\$404.00

Terminal: Unknown

Friday, December 18, 2020 01:25 PM

Thank you for authorizing your payment

Here is your tracking ID - **544198**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
CRLU1354247	Demurrage paid through 12/23/2020	\$3,643.00
	Total:	\$3,643.00

Terminal: Unknown

Wednesday, December 16, 2020 09:27 AM

Thank you for authorizing your payment

Here is your tracking ID - **542753**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
TTNU8065074	Demurrage paid through 12/16/2020	\$404.00
	Total:	\$404.00

Terminal: Unknown

Wednesday, December 16, 2020 09:29 AM

Thank you for authorizing your payment

Here is your tracking ID - **542755**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
GESU9376550	Demurrage paid through 12/16/2020	\$404.00
	Total:	\$404.00

Terminal: Unknown

Wednesday, December 16, 2020 09:31 AM

Thank you for authorizing your payment

Here is your tracking ID - **542758**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
MEDU9127703	Demurrage paid through 12/16/2020	\$404.00
Total:		\$404.00

Terminal: Unknown

Friday, December 18, 2020 01:29 PM

Thank you for authorizing your payment

Here is your tracking ID - **544209**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
TTNU8065074	Demurrage paid through 12/23/2020	\$3,643.00
	Total:	\$3,643.00

Terminal: Unknown

Friday, December 18, 2020 01:32 PM

Thank you for authorizing your payment

Here is your tracking ID - **544212**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
GESU9376550	Demurrage paid through 12/23/2020	\$3,643.00
	Total:	\$3,643.00

Terminal: Unknown

Friday, December 18, 2020 02:49 PM

Thank you for authorizing your payment

Here is your tracking ID - **544307**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
MEDU9127703	Demurrage paid through 12/23/2020	\$3,643.00
Total:		\$3,643.00

Chris
NYDETENTION will release invoice based on my okay
We wont be able to pick up today
Im waiting on truck

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello
Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
420 Fifth Avenue, 10018, New York, NY, USA
T: +1 212-764-4800 Ext. 33393 F: +1 212-827-1636 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva
****** PLEASE READ BELOW ******

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@mssc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@mssc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@mssc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@mssc.com
- For **Delivery Orders**, please send them only to US038-nydo@mssc.com
- For **IT request/cancellation**, please send your request to US038-NYITamend@mssc.com

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

*** We require 48 business hrs lead time with a clean shipment (Freight charges, OBI, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Wednesday, December 16, 2020 10:21 AM
To: Victoria Jackson (MSC USA) <victoria.jackson@msc.com>
Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Laura Cappiello (MSC USA) <laura.cappiello@msc.com>; Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Lydia Miner (MSC USA) <lydia.miner@msc.com>
Subject: RF: NTFD 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I'm curious why you're responding to these emails now yet each and every one of my email requests starting on 12/9 was ignored

NY Detention was contacted this morning. Still no response.

From: victoria.jackson@msc.com <victoria.jackson@msc.com>
Sent: Wednesday, December 16, 2020 10:09 AM
To: Diamond, Chris <cdiamond@mhayakglobal.com>
Cc: dorota.mazur@msc.com; laura.cappiello@msc.com; gaia.sutti@msc.com
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Chris,

AN was sent to the contact PCI manifested, we will not be extending free time. In order to receive an invoice please contact us038-nvdefaction@msc.com

Thanks,

Please follow this [link](#) for a **full list of contacts** at our offices in the United States

Victoria Jackson
Import Customer Service Assistant Manager

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC
The World Trade Center – Suite 1820
401 E.Pratt Street Center Baltimore, MD 21202
T: +1 410 631 7567 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva

From: Diamond, Chris <cdiamond@mohawglobal.com>
Sent: Wednesday, December 16, 2020 9:42 AM
To: Gaia Sutti (MSC USA) <gaia.sutti@msc.com>
Cc: Victoria Jackson (MSC USA) <victoria.jackson@msc.com>; Lydia Miner (MSC USA) <lydia.miner@msc.com>; Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Laura Capiello (MSC USA) <laura.capiello@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

MEDUL2901121
MEDUL2901048
MEDUL2901063
MEDUL2919032

Lydia and Gaia, Thank you for your help getting me the Arrival Notices.

Now we're on to the next item of storage, demurrage, and detention. I have paid Port Demurrage for today to PNCT and await MSC's Detention charges from the NY Detention team.

Can someone ensure these either get picked up today or extend the free time on these 4 containers? If you are not able to, please put me inContact with someone that can help me.

I've attached 2 email strings here. 1st one is me receiving the Arrival Notices this morning. The day after free time expired. The second is me asking for Arrival Notices since December 9th and getting Zero responses until Lydia got involved.

Thanks,

Chris Diamond
Operations Manager
T (508) 257-1052 | M (617) 820-3785
1165 Washington Street | Hanover, MA | 02339
mohawkglobal.com | OTI No.003952NF

From: gaia.sutti@msc.com <gaia.sutti@msc.com>
Sent: Tuesday, December 15, 2020 11:38 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>

Cc: victoria.jackson@msc.com; lydia.miner@msc.com
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Hello,

Fastest way would be Paycargo.

"For your own convenience, we kindly suggest you check on www.mymsc.com, for information regarding **release status, vessel ETA and LFD**

If you still need assistance for above inquiries, please feel free to contact us at **888-262 2520** and take advantage of our newly improved digital phone system!"

Please follow this link for a [full list of contacts at our offices in the United States](#)

Thank you and best regards,

Gala Sutti

Import Manager
Import Client Support Center

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
700 Watermark Blvd., Mt. Pleasant, SC 29464 USA
T: 843 971 4100 D: 843 212 1519 C: 843 609 2995 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva

A close up of a logo Description automatically generated



A picture containing text, sign Description automatically generated



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Tuesday, December 15, 2020 11:25 AM
To: Lydia Miner (MSC USA) <lydia.miner@msc.com>
Cc: Gala Sutti (MSC USA) <gala.sutti@msc.com>; Victoria Jackson (MSC USA) <victoria.jackson@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I have had my IT department find the 4 emails sent to info@mohawk and send them to me.

What is the fastest way to pay these to get the 4 containers Freight Released?

From: lydia.miner@msc.com <lydia.miner@msc.com>
Sent: Tuesday, December 15, 2020 10:45 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>
Cc: gala.sutti@msc.com; victoria.jackson@msc.com
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Hello Chris,
Yes, we will send them to you.
Should you be receiving all arrival notices then?
We will have to update our internal data base but also, when the booking client places the booking, they should provide the proper email address.

Please follow this link for a [full list of contacts at our offices in the United States](#)

Lydia Miner - Kometz

General Manager
Import Documentation & Customer Service

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
420 Fifth Avenue, New York, NY 10018 USA
T: +1 212 827 1618 M: +1 347 276 5203 F: +1 212 827 1636 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Tuesday, December 15, 2020 10:42 AM
To: Lydia Miner (MSC USA) <lydia.miner@msc.com>
Cc: Gala Sutti (MSC USA) <gala.sutti@msc.com>; Victoria Jackson (MSC USA) <victoria.jackson@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Info@mohawk is an unmonitored account.

Could you arrange to have them forwarded to me?

From: lydia.miner@msc.com <lydia.miner@msc.com>
Sent: Tuesday, December 15, 2020 10:41 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>
Cc: gala.sutti@msc.com; victoria.jackson@msc.com
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Hello Chris,
These were all sent to Mohawk twice.
You can also retrieve arrival notices from mymsc.com.

Arrival Notice Generator Report

B/L Number	Final Destination	A/N Sent	Revised A/N Sent	ETA POD	Customer Email	Notify Email	Notify MSC Code	Notify Email	Previous To Addresses	Notify Fax	Notify 2 Email	Notify 2 Fax	Consignee	Consignee MSC Code	Vessel Name	Voyage Number	Port of Discharge	Freighted A/N	Final Rail Ramp	Terminal	USC District	Firms Code	Shipper
------------	-------------------	----------	------------------	---------	----------------	--------------	-----------------	--------------	-----------------------	------------	----------------	--------------	-----------	--------------------	-------------	---------------	-------------------	---------------	-----------------	----------	--------------	------------	---------

MEDUL2901048	Fall River, MA	11/30/2020 11:21 AM	12/1/2020 12/8/2020 10:32 AM		MOHAWK GLOBAL	USA11623	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com				ATLANTIC CAPE FISHERIES INC.	US720732	MAERSK SRAK	043E	NEW YORK	YES	Port Network Container Terminal	Port Network Container Terminal			SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C.
MEDUL2901063	Fall River, MA	11/30/2020 11:22 AM	12/1/2020 12/8/2020 10:32 AM		MOHAWK GLOBAL	USA11623	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	ATLANTIC CAPE FISHERIES INC.	US720732	MAERSK SRAK	043E	NEW YORK	YES	Port Network Container Terminal	Port Network Container Terminal			SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C.
MEDUL2901121	Fall River, MA	11/30/2020 11:22 AM	12/8/2020 10:33 AM		MOHAWK GLOBAL	USA11623	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	ATLANTIC CAPE FISHERIES INC.	US720732	MAERSK SRAK	043E	NEW YORK	YES	Port Network Container Terminal	Port Network Container Terminal			SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C.
MEDUL2919032	Fall River, MA	12/7/2020 10:43 AM	12/11/2020 8:02 AM		MOHAWK GLOBAL	USA11623	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	info@mohawkglobal.com	ATLANTIC CAPE FISHERIES INC.	US720732	ARCHIMDIS	044E	NEW YORK	YES	Port Network Container Terminal	Port Network Container Terminal			SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C.

Please follow this link for a [full list of contacts at our offices in the United States](#)

Lydia Miner - Kometz

General Manager
Import Documentation & Customer Service

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, New York, NY, 10018 USA

T: +1 212 827 3618 M: +1 347 276 5203 F: +1 212 827 1636 W: [www.msc.com](#)

As agent for MSC Mediterranean Shipping Company S.A., Geneva



From: Diamond, Chris <cdiamond@mohawkglobal.com>

Sent: Tuesday, December 15, 2020 10:34 AM

To: Lydia Miner (MSC USA) <lydia_miner@msc.com>

Cc: Gala Sutti (MSC USA) <gala_sutti@msc.com>

Subject: FW: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hi Lydia,

Can you help?

I've been asking for Arrival Notices since 12/9 and not a single response yet.

From: Diamond, Chris

Sent: Friday, December 11, 2020 11:04 AM

To: us038-arrival-notices@msc.com; US038-HelpMeimport@msc.com

Cc: 'dorota.mazur@msc.com' <dorota.mazur@msc.com>; Sweeney, Steve <ssweeney@mohawkglobal.com>

Subject: NEED 4 ARRIVAL NOTICES!!!

We have 4 containers arriving this weekend and I have not received Arrival Notices yet.

Per Dorota Mazur @ MSC there are Collect charges due. I've been asking for 2 days for Arrival Notices to be sent. I cannot pay your collect charges if I have no idea how much the charges are.

MEDUL2919032
MEDUL2901121
MEDUL2901048
MEDUL2901063

Thanks,

Chris Diamond

Operations Manager

T (508) 257-1052 | M (617) 820-3785

1165 Washington Street | Haverhill, MA | 02339

[mohawkglobal.com](#) | OTI No.003552NF

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Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com

- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITAmend@msc.com

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



From: Marco Sidoti (MSC USA) <marco.sidoti@msc.com>

Sent: Wednesday, December 16, 2020 3:24 PM

To: Laura Cappiello (MSC USA) <laura.cappiello@msc.com>; Diamond, Chris <cdiamond@mohawglobal.com>; US038-New York Detention DL <US038-nydetention@msc.com>; Sandra Yepes (MSC USA) <sandra.yepes@msc.com>

Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>

Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Good day

Adding Sandra for assistance

Marco Sidoti

Nationwide Demurrage/Detention/Perdiem Director

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, New York, NY, 10018 USA

T: +1 212 764 4800 x 42545 M: +1 917 543 8756 F: +1 908 605 2550 W: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva



From: Laura Cappiello (MSC USA) <laura.cappiello@msc.com>

Sent: Wednesday, December 16, 2020 3:21 PM

To: Diamond, Chris <cdiamond@mohawglobal.com>; US038-New York Detention DL <US038-nydetention@msc.com>; Marco Sidoti (MSC USA) <marco.sidoti@msc.com>

Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>

Subject: NEED DET/DEM 3x 40HR Fall River, MA 02720

Hello **Chris**

Appt are per below, will additional Detention and demurrage paid till day prior pick up

Therefore these will be all picked up 12.23

MEDUL2901048 TTNU8065074 On 12/28

MEDUL2901063 GESU9376550 On 12/24

MEDUL2901121 CRLU1354247 On 12/24

NYDETENTION/Marco

Pls help to issue invoice thru 12.23 for a/m

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, 10018, New York, NY, USA

T: +1 212 764-4800 Ext. 33399 F: +1 212 827-1636 W: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

****** PLEASE READ BELOW ******

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITAmend@msc.com

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



From: Laura Cappiello (MSC USA)

Sent: Wednesday, December 16, 2020 10:31 AM

To: Diamond, Chris <cdiamond@mohawglobal.com>; Victoria Jackson (MSC USA) <victoria.jackson@msc.com>

Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Lydia Miner (MSC USA) <lydia.miner@msc.com>

Subject: RE: NEED 4 ARRIVAL NOTICES!!

Chris

NYDETENTION will release invoice based on my okay

We wont be able to pick up today

Im waiting on truck

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

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****** PLEASE READ BELOW ******

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITAmend@msc.com

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



From: Diamond, Chris <cdiamond@mohavaglobal.com>
Sent: Wednesday, December 16, 2020 10:21 AM
To: Victoria Jackson (MSC USA) <victoria.jackson@msc.com>
Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Laura Cappelletto (MSC USA) <laura.cappelletto@msc.com>; Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Lydia Miner (MSC USA) <lydia.miner@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I'm curious why you're responding to these emails now yet each and every one of my email requests starting on 12/9 was ignored.

NY Detention was contacted this morning. Still no response.

From: victoria.jackson@msc.com <victoria.jackson@msc.com>
Sent: Wednesday, December 16, 2020 10:09 AM
To: Diamond, Chris <cdiamond@mohavaglobal.com>
Cc: dorota.mazur@msc.com; laura.cappelletto@msc.com; gaia.sutti@msc.com
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Chris,
AN was sent to the contact PDL manifested, we will not be extending free time. In order to receive an invoice please contact us38-nydetention@msc.com

Thanks,

Please follow this link for a [full list of contacts at our offices in the United States](#)

Victoria Jackson
Import Customer Service Assistant Manager

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
The World Trade Center – Suite 1820
401 E Pratt Street Center Baltimore, MD 21202
T: +1 410 631 7567 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva



From: Diamond, Chris <cdiamond@mohavaglobal.com>
Sent: Wednesday, December 16, 2020 9:42 AM
To: Gaia Sutti (MSC USA) <gaia.sutti@msc.com>
Cc: Victoria Jackson (MSC USA) <victoria.jackson@msc.com>; Lydia Miner (MSC USA) <lydia.miner@msc.com>; Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Laura Cappelletto (MSC USA) <laura.cappelletto@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

MEDUL2901121
MEDUL2901048
MEDUL2901063
MEDUL2919032

Lydia and Gaia, Thank you for your help getting me the Arrival Notices.

Now we're on to the next item of storage, demurrage, and detention. I have paid Port Demurrage for today to PNCT and await MSC's Detention charges from the NY Detention team.

Can someone ensure these either get picked up today or extend the free time on these 4 containers? If you are not able to, please put me in contact with someone that can help me.

I've attached 2 email strings here. 1st one is me receiving the Arrival Notices this morning. The day after free time expired. The second is me asking for Arrival Notices since December 9th and getting Zero responses until Lydia got involved.

Thanks,

Chris Diamond
Operations Manager
T (508) 257-1052 | M (617) 820-3785
1165 Washington Street | Hanover, MA | 02339
mohavaglobal.com | OTI No.003952NF

From: gaia.sutti@msc.com <gaia.sutti@msc.com>
Sent: Tuesday, December 15, 2020 11:38 AM
To: Diamond, Chris <cdiamond@mohavaglobal.com>
Cc: victoria.jackson@msc.com; lydia.miner@msc.com
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Hello,

Fastest way would be Paycargo.

"For your own convenience, we kindly suggest you check on www.mymsc.com, for information regarding **release status, vessel ETA and LPD**

If you still need assistance for above inquiries, please feel free to contact us at **888-262 2520** and take advantage of our newly improved digital phone system!"

Please follow this link for a [full list of contacts at our offices in the United States](#)

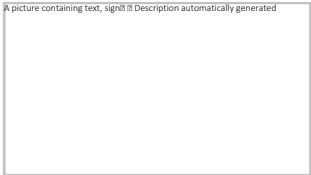
Thank you and best regards,

Gaia Sutti
Import Manager
Import Client Support Center

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
700 Watermark Blvd., Mt. Pleasant, SC 29464, USA
T: 843 971 4100 D: 843 212 1519 C: 843 609 2999 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva

A close up of a logo! Description automatically generated





From: Diamond, Chris <cdiamond@mohawglobal.com>
Sent: Tuesday, December 15, 2020 11:25 AM
To: Lydia Miner (MSC USA) <lydia.miner@msc.com>
Cc: Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Victoria Jackson (MSC USA) <victoria.jackson@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I have had my IT department find the 4 emails sent to info@mohawk and send them to me.

What is the fastest way to pay these to get the 4 containers Freight Released?

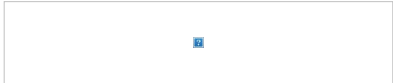
From: Lydia Miner <lydia.miner@msc.com>
Sent: Tuesday, December 15, 2020 10:45 AM
To: Diamond, Chris <cdiamond@mohawglobal.com>
Cc: Gaia Sutti <gaia.sutti@msc.com>; Victoria Jackson <victoria.jackson@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Hello Chris,
Yes, we will send them to you.
Should you be receiving all arrival notices then?
We will have to update our internal data base but also, when the booking client places the booking, they should provide the proper email address.

Please follow this link for a [full list of contacts at our offices in the United States](#)

Lydia Miner - Kometz
General Manager
Import Documentation & Customer Service

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
420 Fifth Avenue, New York, NY, 10018 USA
T: +1 212 827 1618 M: +1 347 276 5203 F: +1 212 827 1636 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva



From: Diamond, Chris <cdiamond@mohawglobal.com>
Sent: Tuesday, December 15, 2020 10:42 AM
To: Lydia Miner (MSC USA) <lydia.miner@msc.com>
Cc: Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Victoria Jackson (MSC USA) <victoria.jackson@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Info@Mohawk is an unmonitored account.

Could you arrange to have them forwarded to me?

From: Lydia Miner <lydia.miner@msc.com>
Sent: Tuesday, December 15, 2020 10:41 AM
To: Diamond, Chris <cdiamond@mohawglobal.com>
Cc: Gaia Sutti <gaia.sutti@msc.com>; Victoria Jackson <victoria.jackson@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Hello Chris,
These were all sent to Mohawk twice.
You can also retrieve arrival notices from mymsc.com.

Arrival Notice Generator Report

B/L Number	Final Destination	A/N Sent	Revised A/N Sent	ETA POD	Customer Email	Notify Email	Notify MSC Code	Notify Email	Previous To Addresses	Notify Fax	Notify 2 Fax	Notify 2 Email	Notify 2 Fax	Consignee	Consignee MSC Code	Vessel Name	Voyage Number	Port of Discharge	Freighted A/N	Final Rail Ramp	Terminal	USC District	Firms Code	Shipper
MEDL2901048	Fall River, MA	11/30/2020 11:21 AM	12/8/2020 10:32 AM	12/11/2020		MOHAWK GLOBAL	USA11623	info@mohawglobal.com	info@mohawglobal.com info@mohawglobal.com info@mohawglobal.com					ATLANTIC CAPE FISHRIES INC.	US720732	MAERX SRAC	043E	NEW YORK	YES	Port Network Container Terminal	Port Network Container Terminal			SOIEDAD EXPORTADORA T & A CORDOVA S.A.C.
MEDL2901063	Fall River, MA	11/30/2020 11:22 AM	12/8/2020 10:32 AM	12/11/2020		MOHAWK GLOBAL	USA11623	info@mohawglobal.com	info@mohawglobal.com info@mohawglobal.com info@mohawglobal.com info@mohawglobal.com					ATLANTIC CAPE FISHRIES INC.	US720732	MAERX SRAC	043E	NEW YORK	YES	Port Network Container Terminal	Port Network Container Terminal			SOIEDAD EXPORTADORA T & A CORDOVA S.A.C.
MEDL2901121	Fall River, MA	11/30/2020 11:22 AM	12/8/2020 10:33 AM	12/11/2020		MOHAWK GLOBAL	USA11623	info@mohawglobal.com	info@mohawglobal.com info@mohawglobal.com info@mohawglobal.com					ATLANTIC CAPE FISHRIES INC.	US720732	MAERX SRAC	043E	NEW YORK	YES	Port Network Container Terminal	Port Network Container Terminal			SOIEDAD EXPORTADORA T & A CORDOVA S.A.C.
MEDL2919032	Fall River, MA	12/7/2020 10:41 AM	12/11/2020 8:01 AM	12/13/2020		MOHAWK GLOBAL	USA11623	info@mohawglobal.com	info@mohawglobal.com					ATLANTIC CAPE FISHRIES INC.	US720732	ARCHIMOS	044E	NEW YORK	YES	Port Network Container Terminal	Port Network Container Terminal			SOIEDAD EXPORTADORA T & A CORDOVA S.A.C.

Please follow this link for a [full list of contacts at our offices in the United States](#)

Lydia Miner - Kometz
General Manager
Import Documentation & Customer Service

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
420 Fifth Avenue, New York, NY, 10018 USA
T: +1 212 827 1618 M: +1 347 276 5203 F: +1 212 827 1636 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva



Subject: FW: NEED 4 ARRIVAL NOTICES!!!

Sensitivity: Internal



**985 OCEAN DRIVE
CAPE MAY, NEW JERSEY 08204
TEL. (609) 884-3000**

**140 WALDRON ROAD
FALL RIVER, MA 02720
TEL. (508) 990-9040**

Date: 7-15-2021

To: Federal Maritime Commission
From: Atlantic Capes Fisheries

ASSIGNMENT OF CLAIM

RE MBL Numbers: MEDUL2901048
MEDUL2901063
MEDUL2901121
MEDUL2919032
Total of 4 x 40' Reefer Containers

We issued Customs Power of Attorney to Mohawk Global Logistics to make customs entry on the captioned shipment of four refrigerated containers we purchased from our supplier in Peru on a port to door delivered basis. In order to gain freight release, Mohawk advanced charges on our behalf that we summarily reject as valid on the basis this was freight prepaid service to our door in Fall River, MA.

We hereby direct and authorize Mohawk Global Logistics to pursue this claim on our behalf.

Sincerely,


Name

Title: CEO